

CORCORAN FRENCH

INTELLECTUAL PROPERTY

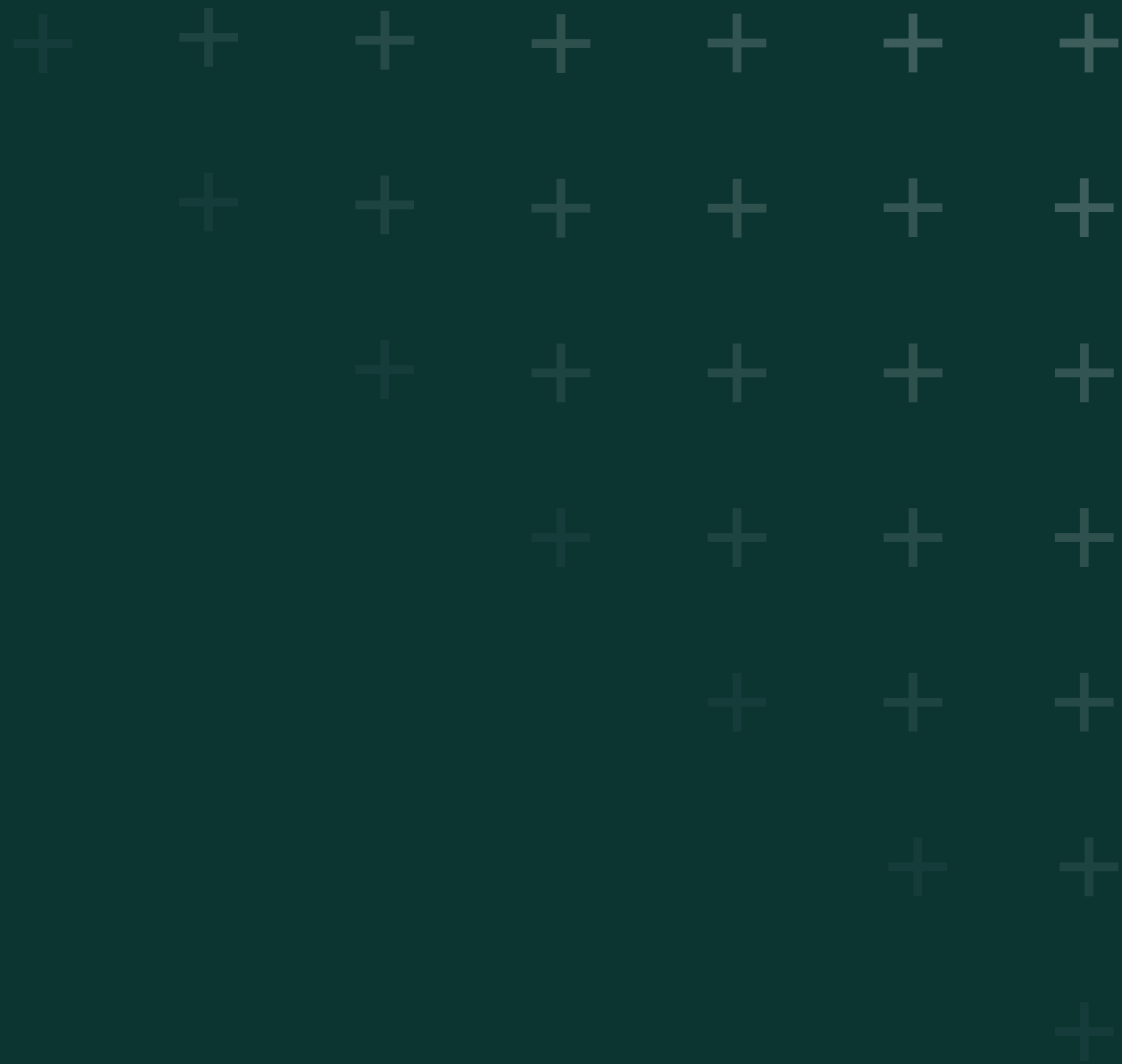
IP For Engineers

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Introduction to IP

What is IP?

Why is it important?

Who can help you with IP?

What is Intellectual Property?



Think
Branding



Create
Write or draw



Design
Identify and meet a need



Dream
New Invention



Develop
Improve

Why is IP Important?

- Competitive advantage
- Better products
- More popular branding
- Cheaper production methods
- Trendier looking styling
- >80% of the value of a business may be its intellectual property
- Engineers are paid predominantly to produce IP

IP Strategy is important

Leverage

- Leverage IP to earn money

Block

- Block competitors

Avoid

- Avoid legal infringement risk

Who can help

IPONZ

Patent Attorneys

Lawyers

Some Types of Intellectual Property



Patents – protect new products and processes



Confidential Information / Trade Secrets



Copyright – everything you draw or write



Designs – eye appeal of product



Trade Marks – brand protection



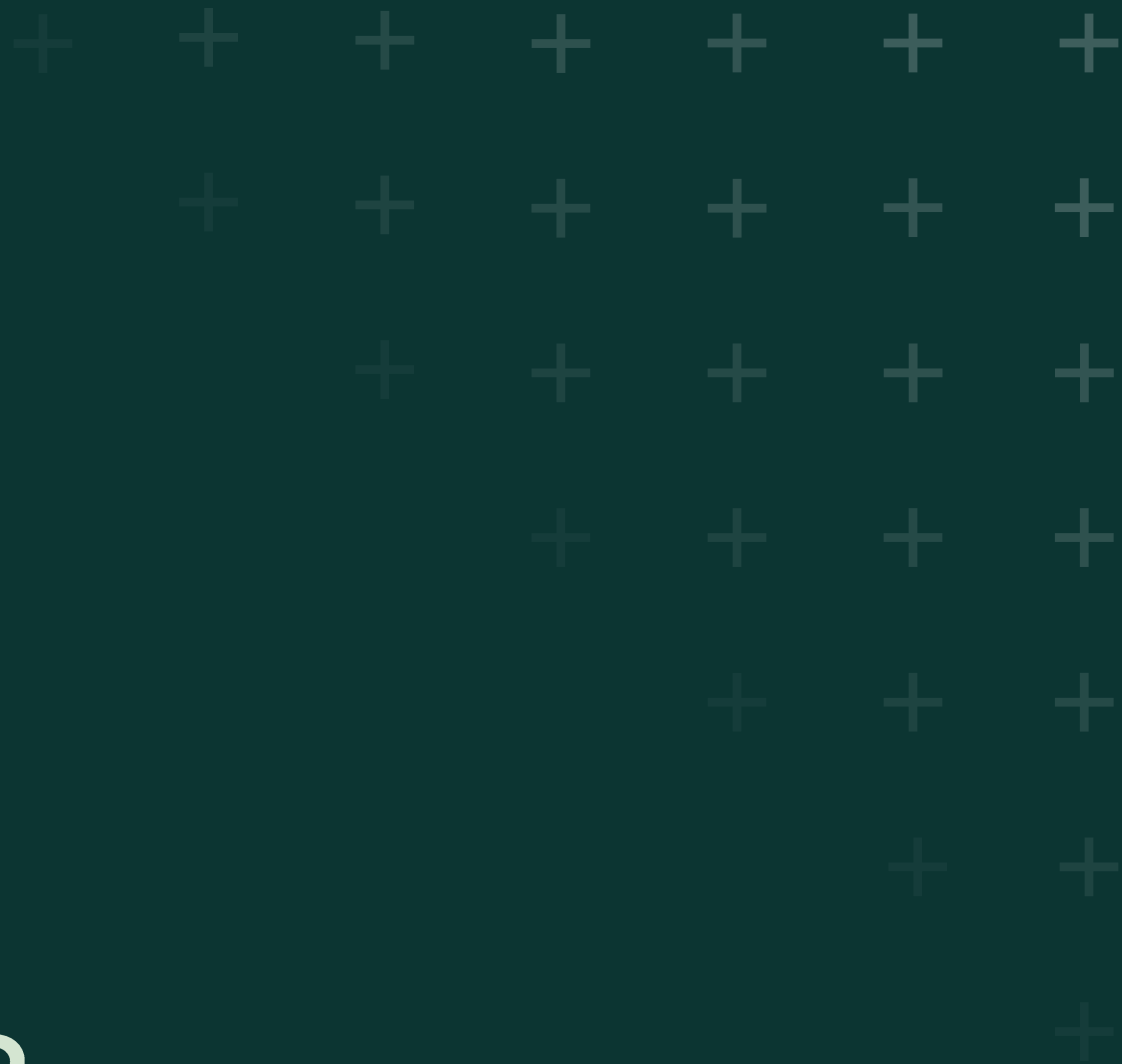
Plant varieties



Circuit layout designs



Geographical indications



Patents

What do they protect?

What are the legal requirements?

Searching patents?

A Patent is...

An exclusive right, granted by the government, to stop others from making, using or selling an invention for up to 20 years.

Given to the patentee in exchange for disclosing the invention.

A valuable asset that can be bought, sold, licensed or transferred like any other property.

The Bargain

Full disclosure of the new invention in exchange for 20 year monopoly right

Exclusive Rights

A patent allows you to stop anyone else from:

- Manufacturing
- Selling
- Using
- Importing
- Marketing
- Licensing

Attractive to Investors

Demonstrates serious technical confidence

20 year monopoly right

Ability to licence to existing companies overseas

Marketing too: “our patented system”

Inventor recognition – CV and LinkedIn profile

Patents – what they protect

How things work – function, not form

A Patent can be granted for...

A new product

A new process of manufacturing

An improvement to an existing product or process

Improvements in computer technology (but not software)

A new chemical compound

Electrical devices and circuits

A new method or process relating to the testing or control of an existing manufactured process

NB – there are exceptions to patentable subject matter

Computer Programs as Inventions

A computer program is not an invention.

To the extent that it relates to a computer program as such.

Meaning the actual contribution made by the alleged invention lies solely in it being a computer program

- a new and improved way of operating a washing machine that gets clothes cleaner and uses less electricity is an invention

Taking into account:

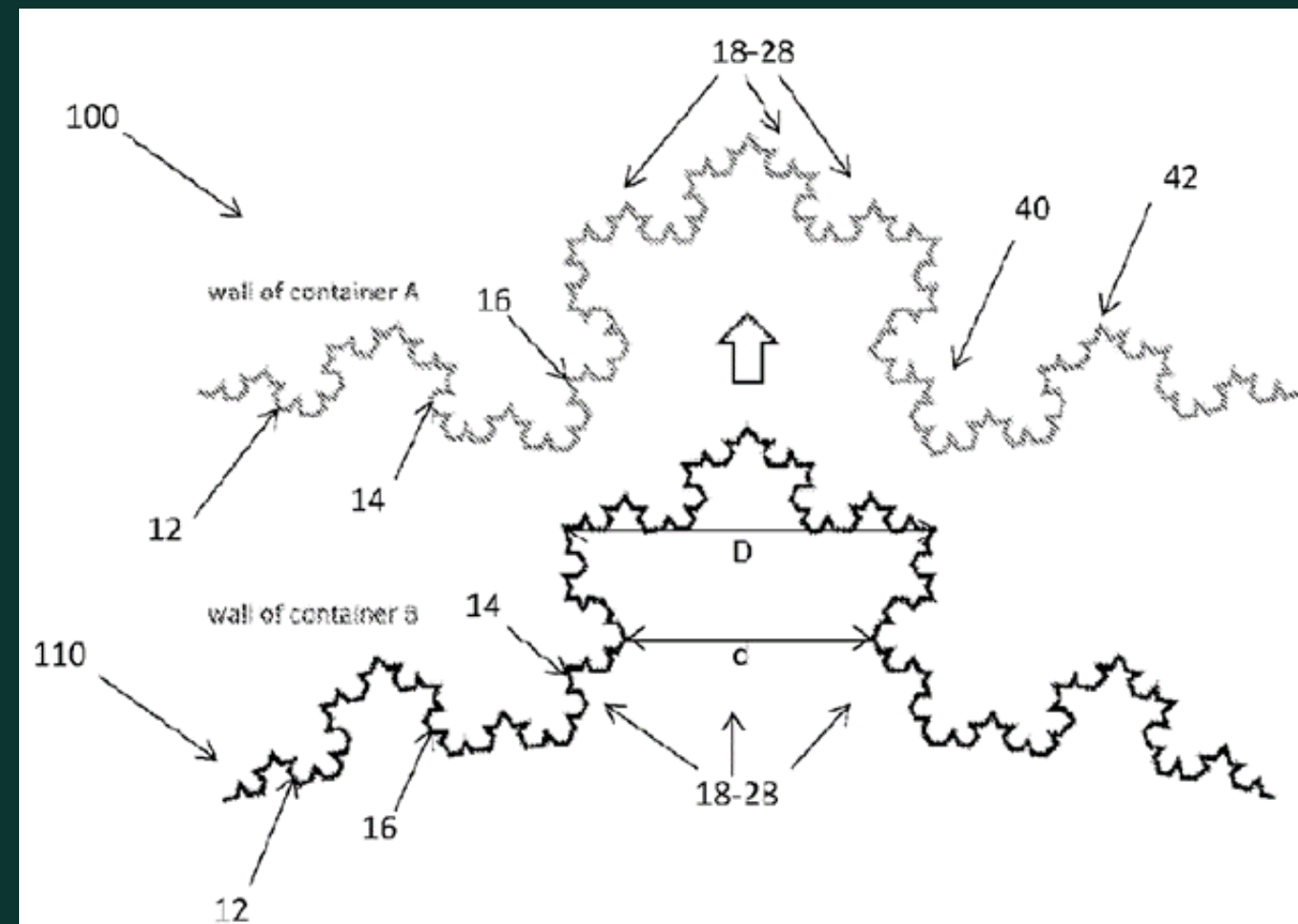
- the substance of the claim and the actual contribution it makes:
- what problem or other issue is to be solved or addressed:
- how the relevant product or process solves or addresses the problem or other issue:
- the advantages or benefits of solving or addressing the problem or other issue in that manner:
- any other matters the Commissioner or the court thinks relevant.

Human Invention Required

“DABUS, the invention was autonomously generated by an artificial intelligence”

(“Device for the Autonomous Bootstrapping of Unified Sentence” owned by Stephen Thaler)

Not accepted as inventor



Māori Advisory Committee

Knowledge of mātauranga Māori (Māori traditional knowledge) and tikanga Māori (Māori protocol and culture)

To advise on whether:

- an invention claimed in a patent application is derived from Māori traditional knowledge or from indigenous plants or animals; and
- if so, whether the commercial exploitation of that invention is likely to be contrary to Māori values

Main Legal Requirements



Novel

Never been done or written about before



Inventive

not merely obvious in light of what has been done before



Useful

specific, credible, and substantial utility

Novel

Assessed at “priority date”

- First application for protection

Not part of the “prior art base”

- all matter that has been made available to the public by
 - written description
 - oral description
 - use
 - in any other way.
- at any time before the priority date
- whether in New Zealand or elsewhere

There are a few limited exceptions:

- Note the “Grace period” introduced by CPTPP is NOT recognised in many other important jurisdictions

Inventive Step

Notional skilled addressee

Common General Knowledge

One document / use from prior art at a time

- Unless it is likely the skilled person would consider those teachings together

Avoid hindsight / ex post facto analysis

Long-standing problem?

Commercial success?

Useful

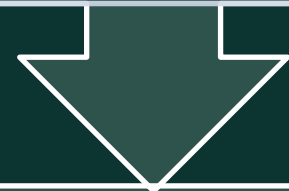
Credible utility required



Potentially patentable invention?

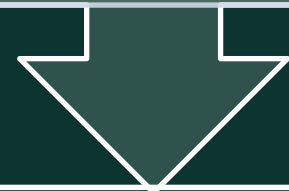
Protect

Keep it secret to keep your options open



Talk

Consult with a Registered Patent Attorney. Do this at an early stage.



Think

Be strategic about which form of protection you choose.
Remember patents require disclosure in exchange for monopoly.

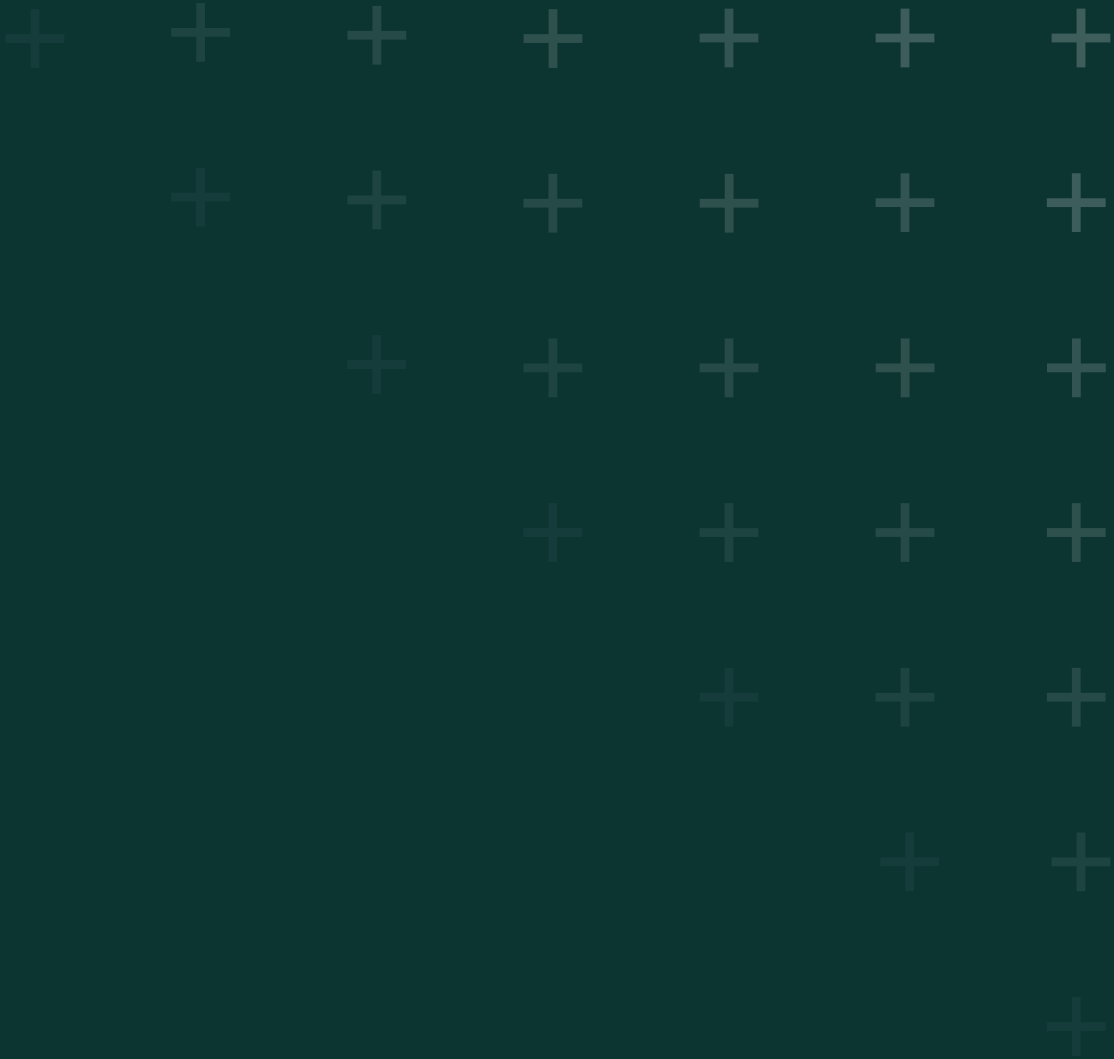
Patents – Number One Rule

A Patent Application must be filed before:

- Any non-confidential disclosure
- Sales (or offers for sale)
- Commercial use

Those will be part of the “prior art base”





Copyright

What does Copyright protect?
Common Issues

Protects Form of Expression

Does not protect underlying idea

Protects a particular expression of the idea

Must be embodied in specific copyright works

Copyright Works

Artistic works

- includes paintings, drawings, diagrams, maps, plans, engravings, photographs, sculptures, buildings, other works of artistic craftsmanship

Dramatic works

- includes dance, mime, film scripts

Literary works

- anything written, including tables and computer programs

Musical works

Sound recordings

Films

Copyright Protection

Ownership agreements must be in writing

Free and automatic (in NZ)

Relies on internal record

Marking is a good idea (© 2025 ABC Limited)

No percentage rule

There is no “safe amount” you can change a work

- Objective similarity
- Substantial part

But must be a “casual connection”

- Independent creation does not infringe

Record Keeping is Paramount

Providing infringement first requires evidence of:

- When created
- Where created
- Who created
- Who owns it

Defending infringement may be assisted by

- Evidence of independent design process

New Zealand's Industrial Copyright

“Artistic work” includes any drawing or sculpture (prototype)

No artistic merit required

- Examples: sheep dip jetters, asparagus graders, and denim jeans

16 years from “commercial use”

Requires good record keeping

- Copies of every version of the design
- Date
- Author

Cannot rely on this overseas

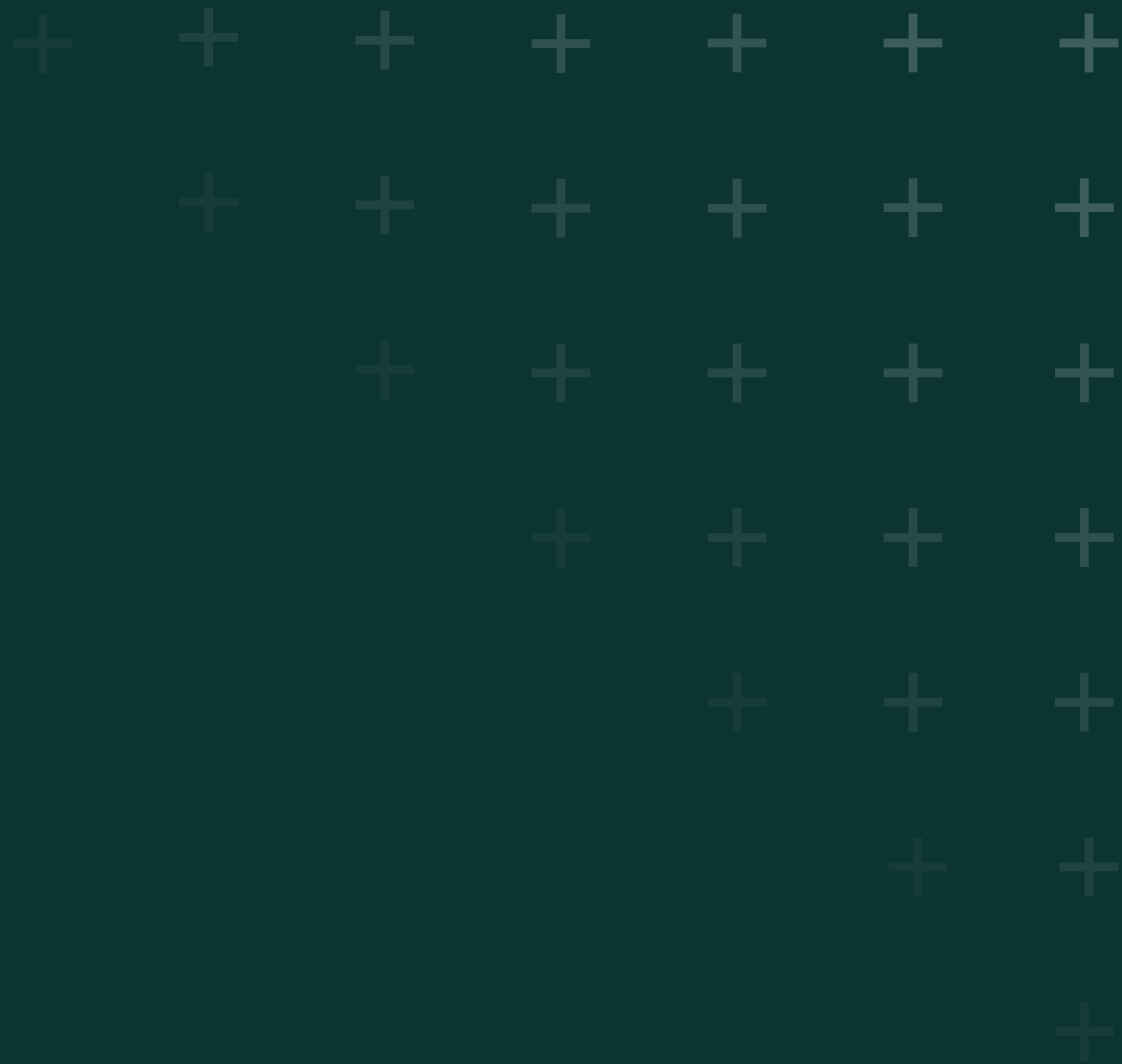
Common Issues

Ownership of copyright

Online ≠ free to use

Different standards of “fair dealing” internationally

No “percentage rule”



IP Ownership

Problems often arise
Discuss ownership early

Who owns the IP?

Employment Agreements

- Usually the employer owns the IP
- Employee receives pay

Work on Commission

- Usually the person paying owns the work
- Photograph, computer program, painting, drawing, diagram, map, chart, plan, engraving, model, sculpture, film, or sound recording

Standard rules may be varied by contract

- Get it in writing (so everyone is clear)

Ownership Examples

Engineering NZ Standard Terms

- Co-ownership between client and company

Software development

- Agreement will usually retain ownership of code and grant licence
- Allows for reuse of code library for future projects

Design Rights

What do designs protect?

Protect Eye Appeal – not Function

Novel shape and configuration applied to an object

Novel pattern and ornamentation applied to any object

NB Major differences in rules for overseas protection

Examples of Registered Designs



PERSPECTIVE VIEW



PERSPECTIVE VIEW



FRONT RIGHT PERSPECTIVE VIEW

Scope of Protection

Registered right filed with IPONZ

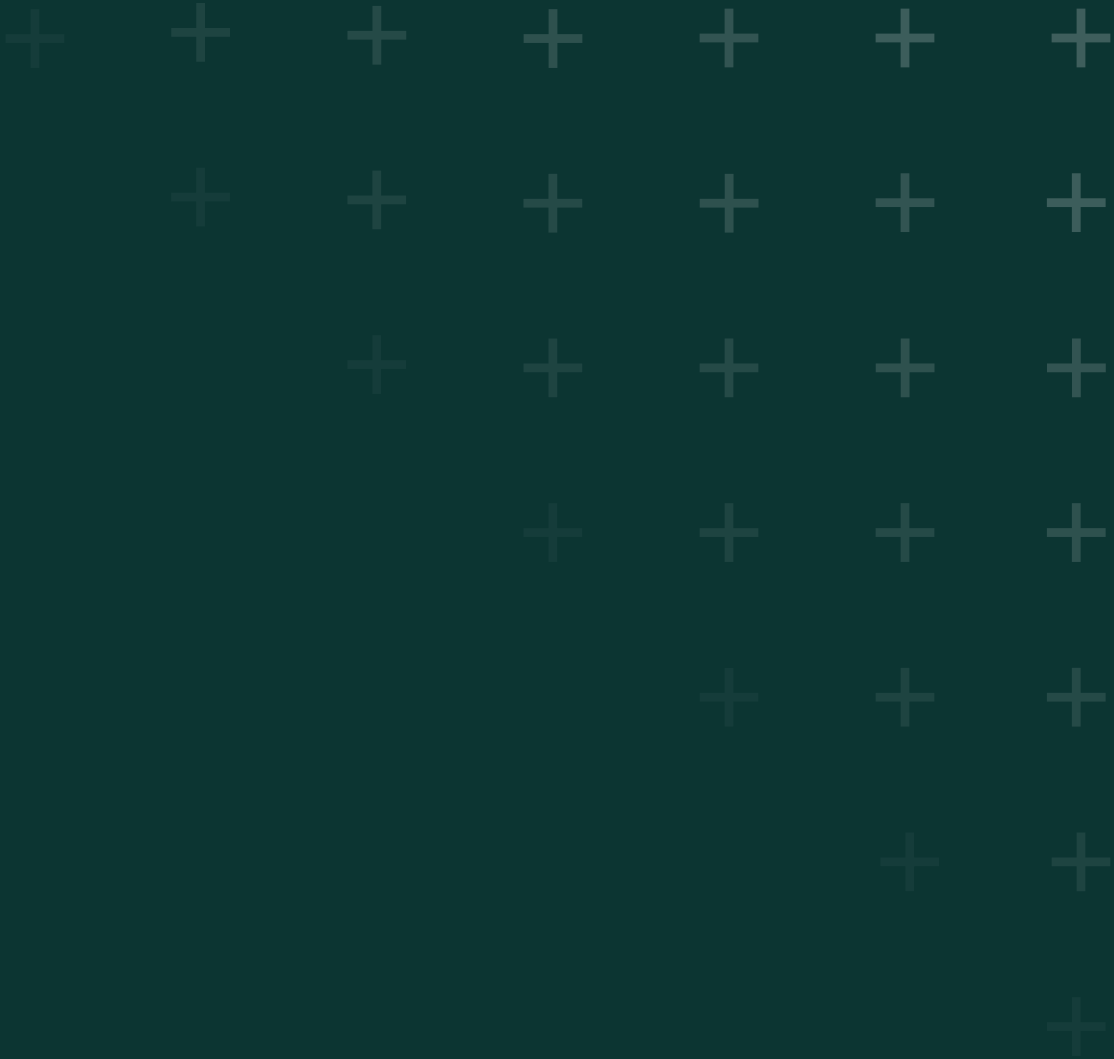
- Designs | Intellectual Property Office of New Zealand (iponz.govt.nz)

Novelty requirement (like patents)

Convention time limit for overseas filing

- 6 months

Up to 15 years protection (subject to renewals)

A decorative graphic in the top right corner consisting of a grid of plus signs (+) in a light teal color, arranged in a pattern that tapers to the right.

Trade Marks

What is a trade mark?
Trade mark registration

What is a Trade Mark?

A sign that is capable of distinguishing your goods / services from those of other traders:

- Words
- Logos
- Pictures
- Shapes
- Sounds
- Smells
- Colours
- Animations
- Position marks

Examples of Trade Marks

COCA-COLA

HONDA

FARMERS

XERO

COLGATE

NESPRESSO

HUGO BOSS

BNZ

THE BODY SHOP

KFC

HEINZ

SPARK

CADBURY

MINECRAFT

THE WAREHOUSE

BARBIE

COUNTRY ROAD

ASB

POST-IT

SCANPAN

FRANK GREEN

KATHMANDU

MONTANA

SUBWAY

Examples of Trade Marks



Examples of Trade Marks



Trade Marks to Avoid

Descriptive terms

- Including Māori words which have a descriptive meaning

Common names

Place names

Jargon

Offensive words or symbols

Developing a New Brand



Early clearance checks

Google, Trade Mark check (www.iponz.govt.nz)
and professional search and opinion



Ensure copyright ownership

Contracts with designers and employees



Consistent use

Develop BRANDTM guidelines



Registration

Nationwide rights, easier to enforce

Trade Mark Strategy



Identify Trade Marks

Words, Logos, Icons etc
You can always use TM symbol



Risk Analysis

Is there a need to stop competitors from copying?
Registered trade marks are easier and cheaper to enforce
but have an up-front cost



Exporters / Overseas Manufacturers

Should always register



Overseas translations and/or transliterations

Māori Advisory Committee

Knowledge of te ao Māori (Māori worldview) and tikanga Māori (Māori protocol and culture)

To advise on whether:

- the proposed use or registration of a trade mark that is, or appears to be, derivative of a Māori sign, including text and imagery, is, or is likely to be, offensive to Māori.

Any mark that looks like it may include a Māori element will be reviewed by MAC

May seek information regarding development and consultation process

Provide useful online resources: <https://www.iponz.govt.nz/get-ip/trade-marks/practice-guidelines/current/maori-advisory-committee-and-maori-trade-marks/>

Related Rights to Secure

Domain Names

- Which TLDs? .co.nz , .com, .kiwi etc
- Likely typos?

Social Media handles

Company Name

- Does not confer exclusive rights –need trade mark registration

Secure these early for practical protection

Trade mark registration trumps all these rights

- Basis for Domain Name Dispute Resolution - <https://dnc.org.nz/>



General IP Considerations

Infringement
IP Strategy

IP Infringement

You must enforce your own IP rights

- Private insurance is available, but rare

Consider whether infringement has occurred

- Different requirements for different IP rights

In New Zealand, first approach is usually a letter

- From IP right owner (usually more “friendly”)
- From lawyer or Patent Attorney – “cease and desist”

Most disputes resolved by correspondence or commercial negotiation

- Stopping the infringing behaviour
- Agreeing to a licence

Few New Zealand cases get to Court

- Those that do tend may result in long and costly litigation
- Court action more likely in overseas jurisdictions (especially US)

Bespoke IP Strategy

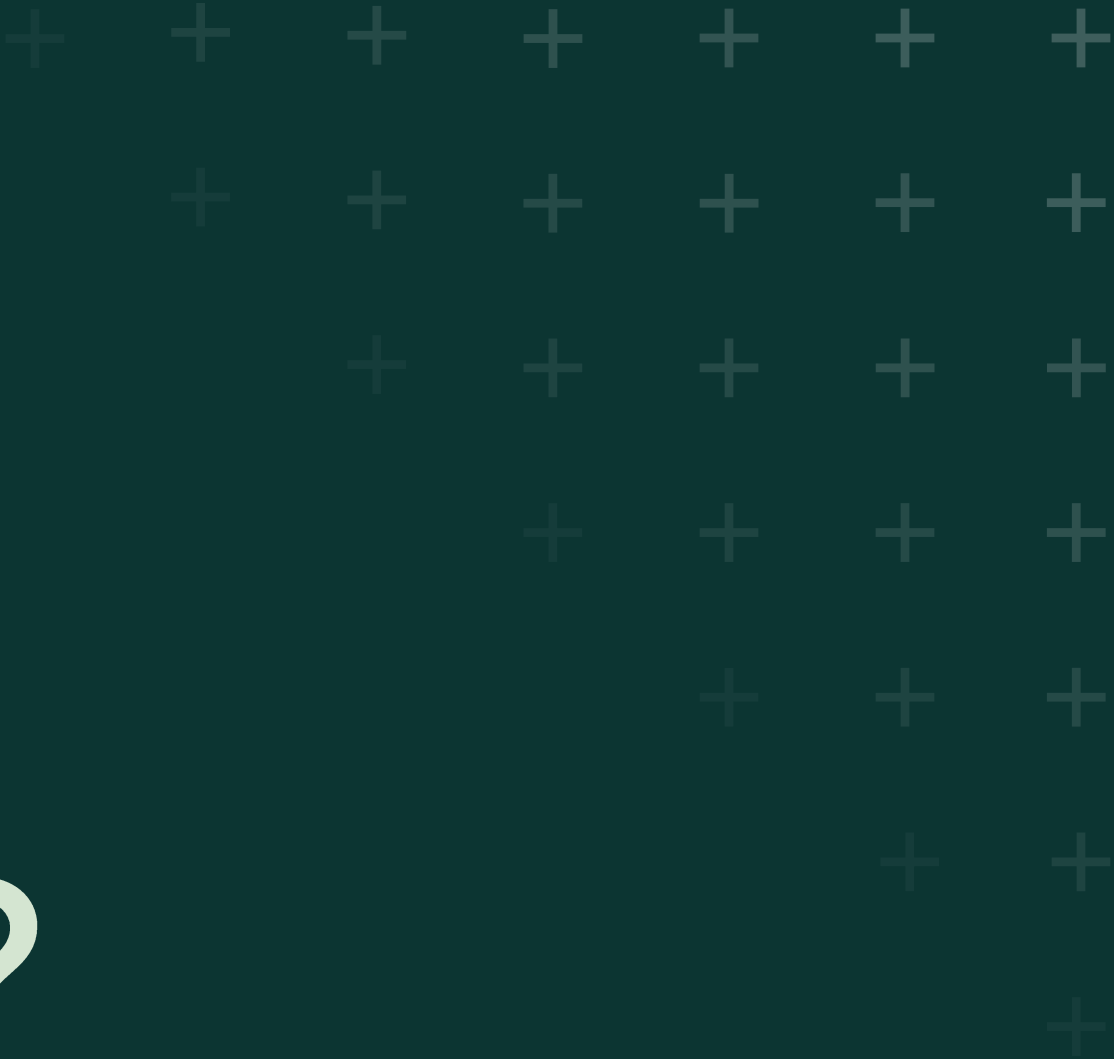
It's not one size fits all

- Don't blindly follow what someone else has done

Consider using a mix of protections for different aspects of each project

Risk Management

- Don't copy
- Check for registered rights (patents, designs, trade marks) before committing too many resources

A decorative graphic in the top right corner consisting of a grid of plus signs (+) in a light teal color. The grid is approximately 7 columns wide and 6 rows high, with some signs missing to create a sparse, artistic pattern.

QUESTIONS?

PĀTAI?

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Kaiapoi

Phone: 03 327 8159

Address: 137 Williams Street, Kaiapoi

Postal: PO Box 15, 7644

Greymouth | Māwhera

Phone: 03 768 4169

Address: 61 Guinness Street, Greymouth

Postal: PO Box 8, 7840

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